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INDUSTRIAL LEASE
COMMERCIAL REAL ESTATE LEASE AGREEMENT

THIS LEASE AGREEMENT, made effective the **17h** day of **June**, 2025 (hereinafter called "Effective Date") by and between **Heritage Industrial**, LLC., an Oklahoma limited liability company (hereinafter called "LANDLORD") and **Tobe Energy Corp.**, a Delaware C-corporation qualified to do business in Oklahoma (hereinafter called "TENANT"). For and in consideration of the covenants and agreements herein provided, LANDLORD does hereby Lease to TENANT certain real property situated in Oklahoma County, State of Oklahoma (hereinafter called "Lease"), described a warehouse building located at **1820 SE 22nd Street, Oklahoma City, OK 73129** depicted in Exhibit A (hereafter called "Premises").

1. BASE TERM: This Lease shall be a term of **24** months.

2. COMMENCEMENT DATE. This Lease shall commence as of August 1, 2025.

3. RENT. TENANT agrees to pay LANDLORD as rental for the above described property $**5,500.00** per month on or before the first day of each month. The monthly rent shall increase 3% per year. The first month's rent and security deposit are due at the time this agreement is signed.

   August 1, 2025 – July 31, 2026: $5,500/month
   August 1, 2026 – July 31, 2027: $5,665/month

   All payments shall be made payable to LANDLORD with a mailing address below or such other place as LANDLORD may designate:

   Heritage Industrial, LLC
   PO Box 2276
   Oklahoma City, OK 73101

   LATE CHARGE. A late charge equal to ten percent (10%) of the monthly rental payment plus $50/day shall be assessed on any such payment made after the 5th day of the month in which said payment is due. Late charges shall be considered an additional rental and if not paid as required shall constitute a default by TENANT. There shall be a Fifty Dollar ($50.00) fee for any returned checks.

4. SECURITY DEPOSIT. The Security Deposit, due at the time this agreement is signed, is the sum of **$5,500.00**, which represents the full and faithful performance by TENANT of all the terms and conditions upon the TENANT'S part to be performed. The TENANT shall not be entitled to any interest on the aforesaid security. Any default or breach of any of the covenants or conditions of this Lease by the TENANT shall forfeit the above Deposit to the LANDLORD.

5. USE. No activity or operations requiring a medical marijuana license from the Oklahoma Medical Marijuana Authority shall be allowed on the Premises. Tenant's use shall be limited to operating an oil and gas company.

6. TENANT MAINTENANCE. TENANT accepts the Premises in as is condition, TENANT shall maintain in good order, condition and repair the Premises including but not limited to: mowing, maintaining fences, keeping the premises and sidewalks free of snow and ice, maintaining overhead doors and man doors, cranes, HVAC equipment, and electrical, lighting, plumbing installed therein. TENANT shall make all other repairs, whether of a like or different nature, including damages caused by unauthorized breaking and entering.

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In the event TENANT fails to maintain Premises in good order, condition and repair, LANDLORD may give TENANT notice to do such acts as are reasonably required so to maintain Premises. In the event TENANT fails promptly to commence such work or diligently prosecute the same to completion, LANDLORD, at LANDLORD'S option, may perform such acts and expend such funds at the expense of the TENANT as are required to perform such work. Any amount so expended by LANDLORD shall be paid by TENANT promptly after demand with interest at eighteen percent (18%) per annum from the date of such work. LANDLORD shall have no liability to TENANT for any damage, inconvenience or interference with the use of Premises by TENANT as a result of performing any such work or by reason of undertaking the repairs.

Upon the expiration or earlier termination of this Lease, TENANT shall surrender Premises in good condition. TENANT shall indemnify LANDLORD against any loss or liability resulting from delay by TENANT in so surrendering Premises, including without limitation any claims made by any succeeding TENANT founded on such delay.

7. LANDLORD MAINTENANCE. LANDLORD shall repair and maintain the roof, unless such maintenance or repair is caused in whole or in part by the neglect, fault or omission of TENANT, its agents, employees or invitees, or by unauthorized breaking and entering, in which event TENANT shall pay to LANDLORD the cost of such maintenance and repair. LANDLORD shall have no obligation to repair until a reasonable time after the receipt by LANDLORD of written notice of the need for repairs and LANDLORD shall not be liable for any secondary damage (e.g. damage related to roof leaking on TENANT'S contents, wet sheetrock, mold etcetera. Unless otherwise specifically provided in this Lease, there shall be no abatement of rent and no liability of LANDLORD by reason of any injury to or interference with TENANT'S business arising from the making of any repairs, alterations or improvements in or to any portion of Premises, or parking lot. Furthermore, TENANT shall be responsible for the first Five Hundred Dollars ($500.00) of each maintenance occurrence under LANDLORD MAINTENANCE, and LANDLORD shall be responsible for the remaining cost.

8. ALTERATION. TENANT shall not erect or place any signs or advertising on or visible from the exterior of Premises, nor alter the exterior or make any alterations or additions to Premises without LANDLORD'S prior written consent. All alterations, additions, and improvements made by TENANT to or upon Premises, except furniture and trade fixtures, shall at once when made or installed be deemed to have been attached to the freehold and to have become the property of LANDLORD; provided, however, if prior to termination of this Lease, or within fifteen (15) days thereafter, LANDLORD may direct by written notice to TENANT, TENANT shall promptly remove the additions, improvements, fixtures, trade fixtures and installations which were placed in Premises, by TENANT and which are designated in said notice and shall repair any damage occasioned by such removal and in default thereof LANDLORD may effect said removal and repairs at TENANT'S expense. Any improvements, alterations, repairs, or maintenance will be performed in a workmanlike manner by qualified and licensed firms. TENANT further agrees not to allow any liens for non-payment to be placed on subject property; if any liens do appear, TENANT agrees to deposit sufficient funds with LANDLORD to satisfy said lien or judgment.

9. TENANT IMPROVEMENTS. TENANT agrees to accept Premises in AS-IS, WHERE-IS and shall make necessary improvements for their business at their sole expense.

10. AUTHORITY. Each party hereto affirms and states it has full right and authority to enter into this Lease agreement.

11. OPERATING EXPENSES. LANDLORD shall pay all ad valorem taxes and building insurance expenses pertaining to the Premises. TENANT shall be liable for any taxes levied on personal property and for TENANT'S insurance needs.

12. SUBLEASE. The TENANT shall not assign or transfer this Lease or any interest therein nor sublet said Premises or any part thereof without the written consent of the LANDLORD but such consent shall not be unreasonably withheld; nor shall this Lease be assignable or transferable by operation of law or by any process or proceeding of any Court, or otherwise without the written consent of the LANDLORD.

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13. SUBORDINATION. This Lease and all rights of the TENANT hereunder at the option of the LANDLORD will be subjected and subordinate to all encumbrances. TENANT agrees to execute and deliver to LANDLORD from time to time within ten (10) days after written request by LANDLORD all instruments which might be required be LANDLORD to confirm such subordination. Notwithstanding the foregoing provisions, TENANT agrees that any Mortgagee will have the right at any time to subordinate any rights of such Mortgagee to the rights of the TENANT under this Lease on such terms and subject to such conditions as such Mortgagee deems appropriate in such Mortgagee's absolute discretion.

14. INSOLVENCY. In the event of attempted assignment of this Lease to creditors, or the institution of bankruptcy, corporate reorganization, trustee or receivership proceedings involving TENANT, shall forthwith and of themselves cancel and void this Lease, and possession of Premises shall immediately pass to LANDLORD, at its option. If LANDLORD exercises its option to recover possession of Premises upon the occurrence of one of such events, it shall not be held to have waived its cause of action against TENANT for its failure to perform fully the terms of this Lease prior to such event.

15. INDEMNITY. TENANT agrees to carry public liability insurance covering Premises and the business conducted therein, which insurance shall be in amount not less than $1,000,000.00 against liability for injury to or death of any one person and $1,000,000.00 for each occurrence. Such policies shall be for the benefit of LANDLORD and TENANT as their interests may appear, and TENANT shall furnish LANDLORD a certificate of said insurance showing LANDLORD as additional insured. Tenant shall indemnify, defend, and hold harmless Landlord from third-party claims to the extent they are caused by Tenant's negligence or willful misconduct. In any suit or action for damages arising from alleged negligence of TENANT in which LANDLORD is included as a defendant, TENANT will assume all the burdens, costs and expenses of the defense thereof, including attorney's fees, and the cost of settlement or judgment obtained against LANDLORD by reason thereof.

16. DESTRUCTION. In the event said Premises are damaged, partially destroyed or rendered partially unfit for their accustomed uses by fire, tornado, or any other casualty, LANDLORD shall at its expense, promptly restore Premises to substantially the condition in which they were immediately prior to such casualty. From the date of such casualty until said Premises are restored, rent shall abate in such proportion as the part of said Premises thus destroyed or rendered unfit bears to the total Premises. In the event Premises are totally destroyed or rendered wholly unfit for their accustomed uses by any casualty, LANDLORD may, at its option, elect to restore said Premises at its expense to substantially the condition they were in prior to such casualty. If LANDLORD does not commence such restoration within three (3) months after such casualty, this Lease shall terminate and TENANT shall be liable for rent only to the time of such casualty. Premises shall be deemed totally destroyed if the cost of restoration exceeds 50 % of the fair market value of the improvements thereon prior to such casualty. TENANT shall receive pro rata refund of any sum paid in advance for the period during which Premises are unfit for use.

17. DEFAULT. If TENANT vacates or abandons said Premises or defaults in the payment of the rent reserved or any installation thereof, or breaches any of the covenants herein, and if such default or breach continues for ten (10) days after written notice thereof, LANDLORD may, at its option, terminate this Lease or without such termination enter said Premises, remove TENANT'S property therefrom, and re-let the same for the account of TENANT for such rent and upon such terms as may be satisfactory to LANDLORD, without such re-entry working a forfeiture of past or future rents to be paid or the covenants to be performed by TENANT during the full term hereof. In any event, TENANT shall pay any rent deficiency, each month thereafter, during the balance of the term hereof.

18. LIEN. All property of TENANT, in or upon said Premises, whether or not exempt from execution, shall be subject to a lien for payment of the rent reserved and for any damages arising from any breach by TENANT of any of the covenants herein. If default is made in the payment of any installment of the rent, or any part thereof, and if such default continues for ten (10) days after written notice thereof to TENANT, LANDLORD may take possession of said property of

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TENANT, or any part thereof, and sell it at public or private sale, with or without auction, to the highest bidder for cash, and apply the proceeds of said sale first toward the cost of sale and then toward said debt or damages, any remainder to paid to TENANT. In the event it becomes necessary for LANDLORD to take legal action for the enforcement of any obligation imposed upon TENANT by this Lease, TENANT will bear all of the costs and expenses of such action, including reasonable attorney's fees.

19. SUITABILITY. TENANT acknowledges that neither LANDLORD nor any agent of LANDLORD had made any representation or warranty with respect to Premises or the suitability of Premises for the conduct of TENANT'S business, nor has LANDLORD agreed to undertake any modification, alteration or improvement to Premises except as provided in this Lease.

20. PROHIBITED USES:
TENANT shall not do or permit anything to be done in or about Premises nor bring or keep anything therein which will in any way increase the existing rate or affect any fire or other insurance upon Premises or any building of which Premises may be a part or any of its contents, nor shall TENANT sell or permit any articles to be kept, used or sold in or about Premises, which may be prohibited by a standard form policy of fire insurance. If LANDLORD'S insurance premium is increased as a result of TENANT'S business operation, TENANT agrees to pay said increase.

21. WAIVER OF SUBROGATION. TENANT releases and discharges LANDLORD from all liability which may arise out of the loss or destruction by fire or other casualty of any property of TENANT which may be located upon Premises, caused by the act or omission of LANDLORD or its agents. Each of the parties agrees to give notice of this provision to all companies which issue a policy of fire insurance upon Premises, fixtures or contents.

22. CONDEMNATION. All funds derived from condemnation proceeding shall be paid direct to LANDLORD, and TENANT hereby assigns its interest in any such award to LANDLORD.

23. DAMAGE TO PROPERTY. TENANT shall bear all risks of damage to the equipment, fixtures, furnishings, inventory, and supplies located on and situated in said Leased Premises and shall maintain adequate insurance thereof for his own protection and as a result thereof LANDLORD is relieved absolutely of any liability thereof, including, but not limited to, damages to any such property caused by gas, water, smoke, rain or snow, which may leak into, issue or form from any part of said building of which the Leased Premises are a part, or from pipes or plumbing work of said buildings, or from any other places.

24. INTEREST ON PAST DUE OBLIGATION. Except as expressly herein provided, any amount not paid to LANDLORD when due shall bear interest at eighteen percent (18%) per annum from the due date. Payment of such interest shall not excuse or cure any default by TENANT under this Lease.

25. UTILITIES. TENANT agrees to pay for all water, gas, power and electric current and all other utilities supplied to Premises. If any utilities are not separately metered, then the rates charged to TENANT shall not exceed those of the local public utility company if its services were furnished directly to TENANT, and shall not be less than its pro rata share of any jointly metered service as reasonably determined by LANDLORD. LANDLORD shall not be liable in damages or otherwise for any failure or interruption of any utility service being furnished to Premises, and such failure or interruption shall not entitle TENANT to terminate this Lease.

26. BROKERAGE COMMISSIONS. LANDLORD and TENANT acknowledge that no commissions are due in connection with this transaction and agree to hold one another harmless from the same.

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27. COMPLETE AGREEMENT. The covenants and conditions herein contained, together with any exhibits and addendums attached, are the full and complete terms of this Lease agreement, and no alterations, amendments, or modifications of the same shall be binding, unless first reduced to writing and signed by both parties.

LANDLORD: Heritage Industrial, LLC
Notice address: PO Box 2276, OKC, OK 73101

By: _____
Manager

TENANT: Tobe Energy Corp.
Notice address: 1820 SE 22nd Street, OKC, OK 73129

Signed by:
By: Colby DeWeese
93EA02B732DE4D7...
Authorized Representative

LANDLORD _____
TENANT CD

EXHIBIT "A"
The approximate red area represent Premises

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Personal Guaranty

For good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, and in consideration for, and as an inducement to Lessor to make the attached Lease with Lessee dated **June 17, 2025** by and between **Heritage Industrial, LLC** and **Tobe Energy Corp**, the undersigned does hereby guarantee to Lessor, without condition or limitations except as hereinafter provided, the payment of Rent and Additional Rent to be paid by the Lessee and the full performance and observance of all the terms, covenants and conditions therein provided to be performed, observed or complied with by Lessee, including the Rules and Regulations as therein provided, without requiring any notice of non-payment, non-performance or non-observance, or proof, or notice, or demand, whereby to charge the undersigned therefore, all of which the undersigned hereby expressly waives and expressly agrees that the validity of this guaranty and the obligations of the guarantor hereunder shall in no way be terminated, affected or impaired by reason of the assertion by Lessor against Lessee of any of the rights or remedies reserved to Lessor pursuant to the provisions of the attached Lease. Lessor may grant extensions of time and other indulgences and may modify, amend or waive any of the terms, covenants or conditions of the attached lease, and discharge or release any party or parties thereto, all without notice to the undersigned and without in any way impairing, releasing or affecting the liability or obligation of the undersigned. Each of the undersigned agrees that Lessor may proceed directly against the undersigned without taking any action under the attached Lease and without exhausting Lessor remedies against Lessee; and no discharge of Lessee in bankruptcy or in any other insolvency proceedings shall in any way or to any extent discharge or release the undersigned from any liability or obligation hereunder. The undersigned further covenants and agrees that this guaranty shall remain and continue in full force and effect as to any renewal, modification or extension of the attached Lease, and that no subletting and no assignment of the within Lease, with or without Lessor's consent thereto, shall release or discharge the undersigned. As a further inducement to Lessor to make the within Lease and in consideration therefore, the undersigned agrees that in any action or proceeding brought by either Lessor or the undersigned against the other on any matter whatsoever arising out of, under, or by virtue of any of the terms, covenants or conditions of the attached Lease or of this guaranty, the undersigned shall pay, in addition to any damages which a court of competent jurisdiction may award, such amount or amounts as the court may determine to be reasonable attorneys' fees incurred by Lessor or its successors or assigns in the enforcement of this guaranty. Lessor and Guarantor waive the right to trial by jury in any action, proceeding or counterclaim involving enforcement of this guaranty or involving the right to any statutory relief or remedy. All rights under this Guaranty shall inure to the benefit of any successors or assigns of Lessor.

IN WITNESS WHEREOF, the undersigned has signed this Guaranty

Guarantor:

Signed by:
Colby DeWeese
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Initial